

22CHCV01342 22CHCV01342

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22CHCV01342 Hearing Date: July 28, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 27, 2026

MOTION TO COMPEL

DEPOSITION

Los Angeles Superior Court Case # 22CHCV01342

Motion filed: 4/1/26 JURY TRIAL: 8/24/26

MOVING PARTY: Plaintiffs Misael Jimenez; and Dora Jimenez (collectively, "Plaintiffs")

RESPONDING PARTY: Defendant White Cap Supply, LLC ("Defendant")

NOTICE: ok_22

RELIEF REQUESTED: An order compelling Defendant's Person Most Qualified ("PMQ") for Defendant to appear in person for a

deposition and the production of the requested documents.

TENTATIVE RULING: The

motion is granted. Defendant to produce its PMQ for deposition and produce all responsive documents on or before 8/7/26.

BACKGROUND

This is a premises liability action in which Plaintiffs allege that on 12/16/20, Plaintiff Misael Jimenez was visiting Defendants' premises to purchase a door when an unsecured 2"x6" board fell and struck his head, "which caused him to suffer, among other injuries, a significant laceration to his forehead that required stitches and a traumatic brain injury." (Compl. p. 4.)

On 12/8/22, Plaintiffs filed their complaint against two named Defendants, alleging the following causes of action: (1) General Negligence; (2) Premises Liability; and (3) Loss of Consortium (by Plaintiff Dora Jimenez). On 1/11/23, Defendant filed its answer.

On 5/13/24, Plaintiffs served a notice of deposition of Defendant's PMQ. (Ex. 1 to Decl. of Brendan D.S. Way.) On 2/12/25, Plaintiffs served a second notice of deposition of Defendant's PMQ. (Ex. 2 to Way Decl.) On 2/13/26, Plaintiffs served a third notice of deposition of Defendant's PMQ, with an amended notice served 3/13/26. (Exs. 3–4 to Way Decl.) On 3/12/26, Defendant served its objections to the deposition notice. (Ex. 6 to Way Decl.) Defendant failed to produce its PMQ for the deposition. (Way Decl. ¶ 5.)

On 4/1/26, Plaintiffs filed the instant motion to compel the deposition of the Defendant's PMQ. On 4/16/26, Defendant filed its opposition. On 4/22/26, Plaintiffs filed their reply. On 4/29/26, the Court heard the instant motion and ordered the parties to further meet and confer. On 7/16/26, Plaintiffs' counsel filed a supplemental declaration stating that no meet and confer occurred.

ANALYSIS

A party may, upon proper written

notice, obtain discovery by taking the oral deposition of any natural person, organization, partnership, association, or governmental agency. (Code Civ. Proc. §§ 2025.010, 2025.220.) A party deponent can be required to attend a deposition by service of a deposition notice on the party's attorney. (Code Civ. Proc. § 2025.280, subd. (a).)

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, ... without having served a valid objection ..., fails to appear for examination, ... the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc. § 2025.450, subd. (a).)

A. Meet and Confer

A motion to compel a deposition must

(1) "set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice;" and (2) "be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Id. at subd. (b).)

Here, the Court previously continued the hearing on the instant motion, and agreed with Plaintiffs that Defendant must present a PMQ for deposition, but found that to the extent that the parties had not sufficiently met and conferred regarding the scope of the requested categories of testimony and documents requested, further discussions were warranted. Plaintiffs' counsel declares that on 4/29/26, Plaintiffs served Defendant with a proposed amended deposition notice to narrow the categories of testimony. (Supp. Decl. of Brendan D.S. Way ¶ 17.)

Plaintiffs' counsel further declares that despite the Court's ruling, "as of the date of this declaration, twenty-six months after the first notice, Defendant has never designated a person most qualified as to any area of inquiry, never produced a witness on

any of the five noticed deposition dates, never offered a deposition date of its own, and never responded to any of Plaintiffs' written narrowing proposals. Plaintiffs remain willing, as they have been throughout, to conduct the deposition on the narrowed framework served April 29, 2026, on any date the Court sets." (Supp. Way Decl. ¶ 20.)

Based on

the foregoing, the motion is granted. Defendant to produce its PMQ for deposition and produce all responsive documents on or before 8/7/26. The parties shall meet and confer regarding any further topic-specific narrowing and the accompanying document requests within ten (10) days of this Order. The deposition shall proceed on the date set regardless of the status of that further conferral.

CONCLUSION

The motion is granted. Defendant to produce its PMQ for deposition and produce all responsive documents on or before 8/7/26.